

HEARING PREPARATION GUIDE

Prepared for: John Doe

This guide helps you prepare for your eviction court hearing. It is not legal advice.

WHAT TO BRING TO COURT

- ✓ This entire packet (your filed Answer, checklists, and all documents)
- ✓ Photo ID (driver's license, state ID, or passport)
- ✓ Copies of all evidence (photos, receipts, emails, text messages, letters)
- ✓ Copy of your lease or rental agreement
- ✓ Proof of any payments you made (bank statements, money order receipts, canceled checks)
- ✓ Written repair requests you sent to the landlord (keep a copy for yourself)
- ✓ Inspection reports, if any
- ✓ Witness contact information, if applicable
- ✓ Pen and notepad to take notes

YOUR DEFENSES (for your reference)

You raised the following defenses when you filed your Answer. Be prepared to discuss them.

✓ **Landlord failed to make necessary repairs.**

What to state: "The furnace and refrigerator have been broken since February and the landlord has not made repairs despite written requests."

✓ **You dispute the amount of rent claimed.**

What to state: "The ledger includes unauthorized late fees exceeding the statutory cap under C.R.S. 38-12-105."

✓ **The eviction is retaliatory.**

What to state: "The landlord filed this eviction after I complained to the Jefferson County housing authority about the lack of heat."

✓ **You did not receive proper legal notice.**

What to state: "The 10-day notice to quit was defective and failed to provide the statutory cure period required by Colorado law."

✓ **The landlord is demanding unlawful or unauthorized fees.**

What to state: "The landlord is demanding administrative and utility fees not authorized under the written lease agreement."

WHAT TO EXPECT AT THE HEARING

Arrive early. Plan to arrive at least 30 minutes before your scheduled time. Find your courtroom.

Check in. Tell the court clerk or bailiff you are present for your case.

Wait for your case to be called. The judge will call cases one at a time. Listen for your name.

Stand when your case is called. Walk to the front of the courtroom when you hear your name.

You will be asked questions. The judge will ask about the eviction. Answer honestly and briefly.

The landlord will also speak. Do not interrupt. Wait your turn.

The judge will make a decision. This may happen immediately or after a short recess.

TIPS FOR COURT

Dress neatly and cleanly. You don't need a suit, but avoid shorts, flip-flops, or pajamas.

Turn off your phone or set it to silent before entering the courtroom.

Do not interrupt anyone — wait for your turn to speak.

Speak clearly and respectfully. Address the judge as 'Your Honor'.

Stick to the facts. Explain what happened without getting emotional or angry.

If you don't understand a question, politely ask the judge to repeat or clarify.

Bring someone with you for support if you want (they may need to wait outside).

If you need an interpreter, contact the court clerk BEFORE your hearing date to arrange one.

IMPORTANT: This document is provided for informational purposes only. It is not legal advice. If you need legal advice, contact a licensed attorney.
You are responsible for your own case and what you say in court.